2449

Executive Order

MONTEREY NATIONAL FOREST
CALIFORNIA.

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34 36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Monterey National Forest as modified by proclamation of December 12, 1910, be further modified by excluding therefrom the following described lands in the state of California:

In T. 18 S., R. 10 E., Secs. 22 to 28, inclusive, N½ of Secs. 33 and 34, all Secs. 35 and 36;

In T. 19 S., R. 10 E., Sec. 1 and N½ Sec. 2;

In T. 17 S., R. 11 E., Secs. 22 to 27, inclusive, Secs. 34, 35 and 36:

In T. 18 S., R. 11 E., Secs. 1, 2, 3, 4, 9 to 16, inclusive, and 19 to 36 inclusive;

In T. 19 S., R. 11 E., Secs. 1 to 28, inclusive, Secs. 33, 34, 35 and 36;

In T. 17 S., R. 12 E., Secs. 2, 3, 4, 9 to 16, inclusive, and 19 to 36 inclusive;

All of Ts. 18 and 19 S., R. 12 E.;

In T. 18 S., R. 13 E., SW¼ Sec. 5, Frl. S½ Sec. 6, Secs. 7, 8, 17, 18, 19, 20, 21 and 28 to 33, inclusive;

In T. 19 S., R. 13 E., Secs. 3 to 10 inclusive, 15 to 22, inclusive, and 27 to 34 inclusive;

Mt. Diablo Meridian.

It appearing proper and necessary, in the interest of equal opportunity and in good administration, that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of existing withdrawals, shall be opened and become subject to settlement only, under the general provisions of the homestead laws, at and after, but not before, 9 o'clock a. m., standard time, on the sixty-third day after the date of this order; and to entry and other disposition, under any public land law applicable thereto, at and after, but not before, 9 o'clock a. m., on the ninety-first day after said date.

Persons who go upon any of the lands to be restored as herein provided and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the sixty-third day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, and those having preferences to make entry under the provisions of the Act of Congress approved June 11, 1906 (34 Stat., 233), entitled "An Act To provide for the entry of Agricultural lands within forest reserves", and Acts amendatory, will be considered and dealt with as trespassers and preference will be given the prior legal applicant notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view thereafter to going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights or preferences, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
5 September, 1916.

[No. 2449.]